

25NWCV01844 25NWCV01844

County: los-angeles

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Case Number: 25NWCV01844 Hearing Date: September 1, 2026 Dept: R

#13

ORTEGA v. THE GARDENS CASINO

CASE

NO.: 25NWCV01844

HEARING:

Tuesday, September 1, 2026, at 9:00 AM

Plaintiff

JOSEPH MARTIN ORTEGA's Motion to be Relieved from Deemed Admissions is GRANTED.

Moving

Party to give Notice.

Background

On May 22,

2025, Plaintiff JOSEPH MARTIN ORTEGA ("Plaintiff") filed this action against

Defendants THE GARDENS CASINO; HAWAIIAN GARENS CASINO; DV PROPERTIES; and DOES

1 to 100.

Plaintiff's

Complaint asserts the following causes of action:

(1)

Assault;

(2)

Battery;

(3)

Intentional Infliction of Emotional Distress;

(4)

Negligence; and

(5)

Negligent Hiring, Supervision, and Retention

On February

19, 2026, the Court GRANTED Defendant HAWAIIAN GARDENS CASINO's ("Defendant") Motion to Deem Requests for Admission, Set One, Admitted against Plaintiff.

On March

20, 2026, Plaintiff filed the instant motion to be relieved from deemed admissions.

Legal

Standard

CCP section

2033.300 provides that "[a] party may withdraw or amend an admission made in response to a request for admission only on leave of court granted after notice to all parties." (CCP § 2033.300(a).) "The court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits." (Id., § 2033.300(b).) "The court may impose conditions on the granting of the motion that are just, including, but not limited to, the following: [¶] (1) [a]n order that the party who obtained the admission be permitted to pursue additional discovery related to the matter involved in the withdrawn or amended admission[;] [¶] (2) [a]n order that the costs of any additional discovery be borne in whole or in part by the party withdrawing or amending the admission." (Id., § 2033.300(c).)

“Section

2033.300 eliminates undeserved windfalls obtained through requests for admission and furthers the policy favoring the resolution of lawsuits on the merits.” (New Albertsons, Inc. v. Superior Court (2008)

168 Cal.App.4th 1403, 1418.) “Because the law strongly favors trial and disposition on the merits, any doubts in applying section 2033.300 must be resolved in favor of the party seeking relief.” (Id. at

1420.) “Accordingly, the court’s discretion to deny a motion under the statute is limited to circumstances where it is clear that the mistake, inadvertence, or neglect was inexcusable, or where it is clear that the withdrawal or amendment would substantially prejudice the party who obtained the admission in maintaining that party’s action or defense on the merits.” (Id. at 1420-21.)

Discussion

Plaintiff

contends Plaintiff was unable to serve timely verified responses due to Plaintiff’s incarceration.

On

August 8, 2025, Defendant served Requests for Admission, Set One (RFAs) onto Plaintiff. (Gazaryan Decl., ¶ 2.) After multiple extensions, Plaintiff’s final deadline to respond to Defendant’s RFAs was October 22, 2025. (Gazaryan Decl., ¶ 6.) Plaintiff served objection-only, unverified responses on October 22, 2025, and on February 3, 2026, served substantive but still unverified responses. (Gazaryan Decl., ¶¶ 8, 15.) On February 19, 2026, the Court granted Defendant’s motion to deem the RFAs admitted.

Plaintiff

provides evidence he was incarcerated on October 19, 2025. (Gazaryan Decl., Ex. D.) Plaintiff incarceration date predated the October 22, 2025, response deadline. On October 15, 2025, Plaintiff Counsel indicated to Defense Counsel that he had difficulty contacting Plaintiff. (Gazaryan Decl., ¶ 7.) Similarly, on February 3, 2026, Plaintiff Counsel advised Defense Counsel that, “Plaintiff is currently incarcerated and that obtaining executed verifications necessarily requires additional time due to institutional restrictions beyond Plaintiff’s control.” (Gazaryan Decl., ¶ 14.)

The

Court acknowledges Defendant's concerns regarding Plaintiff Counsel's months-long failure to obtain verified responses. However, the Court finds that Plaintiff's failure to serve timely verified responses is attributable to logistical barriers associated with Plaintiff's incarceration. Further, as noted above, any doubts in applying section 2033.300 must be resolved in favor of the party seeking relief. (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1420.) Thus, the Court finds Plaintiff demonstrated excusable neglect attributable to Plaintiff's incarceration.

The Court does not find Defendant will suffer substantial prejudice either. As Defendant highlights, there is no trial date set and discovery remains open.

The admitted RFAs encompass core liability and damages issues and Defendant contends that undoing those admissions would force Defendant to re-open and retool discovery. However, CCP § 2033.300 eliminates underserved windfalls obtained through requests for admission and furthers the policy favoring resolution of lawsuits on the merits. (*New Albertsons, Inc. v. Superior Court*, (2008) 168 Cal.App.4th 1403, 1418.) The Court does not believe Defendant is prejudiced because Defendant would need to engage in further discovery.

The Court believes any prejudice can be limited by granting the following conditions:

1.
Plaintiff shall serve objection-free, verified responses to Defendant's Requests for Admission, Set One, with 45 days of the Court's issuance of this Order.

2.
Plaintiff bears the costs of any additional discovery relating to Defendant's Requests for Admission, Set One.

3.
Given Plaintiff's incarceration and the history of this litigation, Plaintiff must

produce a declaration wherein Plaintiff attests to his intent to continue the instant litigation and promptly respond to Defendant's discovery requests. This declaration must be produced within 30 days of the Court's issuance of this Order.

Conclusion

Plaintiff

JOSEPH MARTIN ORTEGA's Motion to be Relieved from Deemed Admissions is GRANTED.